



CHAPTER 78.

An Act to provide for the modification of the law relating to the administration of justice in the event of the outbreak or probability of war, and for purposes connected therewith.

[1st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Lord Chancellor may by order direct, as respects the Court of Appeal, the High Court or any Division of the High Court, that the Court or Division—

Provisions
as to the
Supreme
Court.

- (a) shall sit at a place or places, and on dates or for periods, specified in or to be appointed under the order; or
- (b) shall sit, at places and on dates or for periods so specified or appointed, in such number of local divisions as may be so specified.

(2) Any such order may provide—

- (a) for the removal of the Central Office of the Supreme Court, the office of the Accountant-General, the Principal Probate Registry or any other office or registry of the Supreme Court to such place or places as may be specified in the order; or

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(b) for the distribution of the business of any such office or registry among district registries or among local offices or registries established by or under the order; or

(c) for the transaction of any part of the business of any such office or registry at a district registry or at a branch office or registry established by or under the order.

(3) Any order made under subsection (1) of this section directing that any Court or Division shall sit in local divisions shall provide—

(a) for the assignment of judges and officers of the Court or Division to the several local divisions;

(b) for the distribution among the several local divisions of appeals, causes and matters pending in the Court or Division at the date of the order or thereafter instituted, and for the transfer of any appeal, cause or matter from one local division to another.

(4) The Lord Chancellor may by order suspend the sittings of the High Court or Court of Appeal, and for that purpose the power of regulating the vacations to be observed by the High Court and Court of Appeal and in the offices of the said Courts respectively shall be exercised by the Lord Chancellor by order instead of being exercised in the manner provided in section fifty-three of the Supreme Court of Judicature (Consolidation) Act, 1925.

15 & 16
Geo. 5. c. 49.

Subsection (2) of the said section fifty-three shall apply to any order of the Lord Chancellor made in pursuance of this subsection as it applies to an Order in Council made in pursuance of that section.

(5) The power of making rules of court under section ninety-nine of the said Act, and of revoking and amending rules made under that section, shall be exercised by the Lord Chancellor, instead of being exercised by the persons mentioned in subsection (4) of that section.

Provisions
as to inferior
courts.

2.—(1) The Lord Chancellor may by order—

(a) suspend the sittings of any inferior court of civil jurisdiction for a period specified in or to be appointed under the order;

- (b) direct that any such court shall sit at a place or places, and on dates or for periods, specified in or to be appointed under the order.

(2) The power of making county court rules under section ninety-nine of the County Courts Act, 1934, shall be exercised by the Lord Chancellor instead of being exercised in the manner provided in that section, and no rules made by the Lord Chancellor in pursuance of this subsection shall be subject to the concurrence of the authority for the time being empowered to make rules of court under the Supreme Court of Judicature (Consolidation) Act, 1925.

24 & 25
Geo. 5. c. 53.

3.—(1) The Lord Chancellor may by order provide —

- (a) for the grant on behalf of His Majesty of commissions of assize and other commissions under section seventy of the Supreme Court of Judicature (Consolidation) Act, 1925; and
(b) for the appointment on behalf of His Majesty of Commissioners of Assize under that section;

Powers
of Lord
Chancellor
as respects
circuits and
assizes.

by such persons and in such form and manner as may be specified in the order.

(2) The powers exercisable by His Majesty by Order in Council under section seventy-two of the said Act (which provides for the regulation of circuits) shall be exercisable by the Lord Chancellor by order.

4.—(1) The Lord Chancellor may by order direct that the Court of Criminal Appeal—

- (a) shall sit at a place or places, and on dates or for periods, specified in or to be appointed under the order; or
(b) shall sit, at places and on dates or for periods so specified or appointed, in such number of local divisions as may be so specified.

Power to
vary sittings
of Court of
Criminal
Appeal.

(2) Where an order is made under the last foregoing subsection directing that the Court of Criminal Appeal shall sit in local divisions, the order shall provide—

- (a) for the assignment of judges of the Court to the several local divisions;
(b) for the exercise of the functions of the registrar of the court, as respects any one or more of the

local divisions, by a deputy appointed in accordance with the provisions of the order;

- (c) for the distribution among the several local divisions of proceedings pending in the Court at the date of the order or thereafter instituted, and for the transfer of proceedings from one local division to another.

Power to
vary sittings
and jurisdic-
tion of
certain
criminal
courts.

5.—(1) The Lord Chancellor may by order direct that the Central Criminal Court shall sit at such place or places, and on such dates or for such periods, as may be specified in, or appointed under, the order.

(2) The Secretary of State may by order direct—

- (a) that any court of quarter sessions or court of summary jurisdiction shall sit at such place or places, and on such dates or for such periods, and at such times, as may be specified in, or appointed under, the order;
- (b) that the whole or any part of the jurisdiction of any court of quarter sessions or court of summary jurisdiction shall be transferred to any other court or courts of quarter sessions or of summary jurisdiction, as the case may be.

General
provisions
as to orders.

6.—(1) Any order made under the foregoing provisions of this Act may be varied, supplemented or revoked by a subsequent order made in like manner.

(2) Any order made under the foregoing provisions of this Act may contain such provisions as appear to be necessary or expedient for giving effect to the order or to any previous order so made, and may suspend or modify, and shall have effect notwithstanding, any provision of any enactment, Order in Council, order, regulations or rules.

(3) For such period and subject to such conditions as may be specified in an authority given by the Lord Chancellor under this subsection, the powers vested in the Lord Chancellor by this Act of varying or supplementing any order made under this Act as respects the Court of Appeal, the High Court or any Division thereof, or the Court of Criminal Appeal, may be exercised, as respects such area or as respects such of those Courts or such Division of the High Court as may be so specified, by any Lord of Appeal in Ordinary or judge of the Supreme

Court authorised in writing by the Lord Chancellor for the purpose.

(4) For such period and subject to such conditions as may be specified in an authority given by the Lord Chancellor under this or the last foregoing subsection, the powers vested in the Lord Chancellor by this Act—

- (a) of making orders with respect to commissions of assize and other commissions and the appointment of Commissioners of Assize; and
- (b) of making orders under section seventy-two of the Supreme Court of Judicature (Consolidation) Act, 1925; and
- (c) of making orders as respects the place or places at which, and the dates on or periods for which, any inferior court of civil jurisdiction is to sit; and
- (d) of making orders as respects the place or places at which, and the dates on or periods for which, the Central Criminal Court is to sit;

may be exercised, as respects such area as may be so specified, by any Lord of Appeal in Ordinary or judge of the Supreme Court authorised by the Lord Chancellor in writing for the purpose.

(5) The powers vested in the Lord Chancellor by this Act—

- (a) of making orders under subsection (1) of section one of this Act with respect to the Court of Appeal, the High Court or any Division of the High Court;
- (b) of making rules of court under section ninety-nine of the Supreme Court of Judicature (Consolidation) Act, 1925, and of revoking and amending any rules made under that section;
- (c) of making orders under section seventy-two of the Supreme Court of Judicature (Consolidation) Act, 1925;
- (d) of making orders with respect to the Court of Criminal Appeal or the Central Criminal Court;
- (e) of varying, supplementing or revoking any such order as is mentioned in the foregoing paragraphs of this subsection;

shall not be exercised (otherwise than under the last two foregoing subsections) except with the concurrence of two

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other judges of the Supreme Court, unless the Lord Chancellor certifies that, by reason of special circumstances arising out of the existence or imminence of a state of war, it is not practicable to obtain such concurrence within the period within which it is necessary that the order or rules in question should be made.

(6) Where by virtue of the last foregoing subsection any such power as is therein mentioned is exercised without the concurrence of two other judges of the Supreme Court, the Lord Chancellor shall consult two such judges as soon as may be after the exercise of the power.

(7) When the Great Seal is in commission, any power vested in the Lord Chancellor by this Act may be exercised by any Lord Commissioner.

(8) For such period, as respects such area and subject to such conditions as may be specified in an authority given by the Secretary of State under this subsection, the power of the Secretary of State of making any order which he is authorised to make by virtue of this Act may be exercised by any person authorised by him in writing for the purpose.

Number and
qualification
of jurors.

7.—(1) Notwithstanding anything in any enactment, for the purpose of any trial with a jury or inquiry by a jury in any proceedings, whether civil or criminal, it shall not be necessary for the jury to consist of more than seven persons :

Provided that the preceding provisions of this subsection shall not apply in relation to the trial of a person on any charge, if the court or a judge thinks fit, by reason of the gravity of the matters in issue, to direct that those provisions shall not apply, and shall not in any case apply in relation to the trial of a person on a charge of treason or murder.

(2) In relation to any case in which, by virtue of the preceding subsection, the jury need not consist of more than seven persons, sections twenty-four and twenty-six of the Juries Act, 1825, (which relate to the selection of a jury) shall have effect as if in those sections for the word " twelve ", wherever that word occurs, there were substituted the word " seven ".

6 Geo. 4.
c. 50.

(3) Section one of the Juries Act, 1825, (which provides that the liability to serve upon a jury ceases at the age of sixty years) shall have effect as if the words "sixty-five years" were substituted for the words "sixty years".

8.—(1) No question arising in any civil proceedings in the High Court or in any inferior court of civil jurisdiction shall be tried with a jury, and no writ of enquiry for the assessment of damages or other claim by a jury shall issue, unless the court or a judge is of opinion that the question ought to be tried with a jury or, as the case may be, the assessment ought to be made by a jury and makes an order to that effect.

Limitation
of proceed-
ings when
jury is
necessary.

(2) Section six of the Administration of Justice (Miscellaneous Provisions) Act, 1933, section ninety-one of the County Courts Act, 1934, and section nineteen of the Administration of Justice Act, 1925, (which relate to trials by jury in the King's Bench Division, the county courts, and other inferior civil courts, respectively) shall not have effect.

23 & 24
Geo. 5. c. 36.

15 & 16
Geo. 5. c. 28.

(3) Subsection (2) of section thirteen of the Coroners (Amendment) Act, 1926, (which specifies the cases in which it is necessary for a coroner to summon a jury) shall have effect as if paragraphs (c), (d) and (e) were omitted therefrom.

16 & 17
Geo. 5. c. 59.

9.—(1) The period for which an accused person may be remanded shall be extended to twenty-one days; and accordingly section twenty-one of the Indictable Offences Act, 1848, as amended by subsection (2) of section twenty of the Criminal Justice Administration Act, 1914, shall have effect as if for the words "not exceeding, unless the person accused and the prosecutor consent, eight clear days" there were substituted the words "not exceeding twenty-one clear days".

Remanding
of accused
persons.
11 & 12 Vict.
c. 42.
4 & 5 Geo. 5.
c. 58.

(2) Subsection (1) of section twenty of the Criminal Justice Administration Act, 1914, (which empowers a court of summary jurisdiction to extend the period of remand in a case where the person remanded is, by reason of illness or accident, unable to appear personally) shall have effect as if the reference in that subsection to illness or accident included a reference to circumstances arising out of the existence or imminence of a state of war.

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Filling of
vacancies
among Lords
of Appeal and
other judges.

10. In the event of the occurrence of a vacancy among the Lords of Appeal in Ordinary or judges of the Supreme Court, it shall not be necessary to fill the vacancy unless the Lord Chancellor advises His Majesty that the state of business requires that the vacancy should be filled.

Commence-
ment and
duration.

11.—(1) This Act shall come into operation on such date as His Majesty may by Order in Council appoint, being a date on which it appears to His Majesty, having regard to the outbreak or probability of war, that it is expedient that this Act should come into operation.

(2) At any time after this Act has come into operation, His Majesty may by Order in Council declare that, subject to any temporary and transitional provisions contained in the Order, it is no longer necessary that this Act should continue in force, and at the end of the day on which such an Order is made this Act shall expire, except as respects things previously done or omitted to be done thereunder and subject to any such provisions.

Short title
and
extent.

12.—(1) This Act may be cited as the Administration of Justice (Emergency Provisions) Act, 1939.

(2) This Act shall not extend to Scotland or to Northern Ireland.

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